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#13

TRAN v. LA

MIRADA POST ACUTE, LLC, ET AL.

CASE NO.: 25NWCV00196

HEARING: Thursday, July
30, 2026, at 9:30 AM

Plaintiff KIM TRAN's Motion to Compel Defendant Compel
Defendant LA MIRADA POST ACUTE LLC's ("Defendant") Further Responses to Special
Interrogatories Nos. 58, 59, 61, and 62 is GRANTED.

Plaintiff to give notice.

BACKGROUND

On January 15, 2025, Plaintiff KIM TRAN, by and through
her Attorney in Fact, Francis Tran ("Plaintiff") filed this elder abuse
action against Defendants LA MIRADA POST ACUTE LLC; SUN MERIDIAN
MANAGEMENT SERVICES LLC; FRANK D. JOHNSON; DAVID JOHNSON; and DOES 1 through
250.

The Complaint alleges that "about August 2024, KIM TRAN was admitted to the
FACILITY suffering from a prior stroke. As a result, KIM TRAN'S family was
unable to provide the level of care she required at home. KIM
TRAN required assistance with her activities of daily living.

KIM TRAN suffered from both side weakness and was unable to walk. [¶] On or about December 28, 2024, KIM TRAN was sexually assaulted by a FACILITY employee who touched KIM TRAN'S breasts and put his fingers inside KIM TRAN'S vagina without her consent.... Additionally, DOE 1 forcibly grabbed KIM TRAN's arm and tried to make KIM TRAN touch his genitals but KIM TRAN refused and pushed her call button." (Complaint ¶¶28-29.)

Plaintiff's Complaint asserts the following causes of action:

(1) Elder Abuse; and

(2) Assault and Battery.

On February 13, 2026, Plaintiff filed the instant motion to Compel Defendant LA MIRADA POST ACUTE LLC's ("Defendant") Further Responses to Special Interrogatories Nos. 58, 59, 61, and 62

MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES

In responding to a set of interrogatories, a party must provide one of the following: (1) an answer "containing the information sought to be discovered"; (2) "an exercise of the party's option to produce writings"; or (3) an objection to the particular interrogatory. (CCP § 2030.210(a).)

Each answer to an interrogatory "shall be as complete and straightforward as the information reasonably available to the responding party permits." (Id. § 2030.220(a).) If any objections are made, "the specific ground for the objection shall be set forth clearly in the response." (Id. § 2030.240(b).) Upon receipt of responses to interrogatories, the propounding party may move for an order compelling further responses if they deem the responses to be "evasive or incomplete" or if "[a]n objection to an interrogatory is without merit or too general." (CCP §§ 2030.300(a)(1), (a)(3).)

Special Interrogatory No. 58 states:

Please IDENTIFY each "alert female resident" of the FACILITY interviewed by YOU relating to interaction between Kim Tran and/or Saul Tapia. (For ease of reference for the responding party and not made a part of the

inquiry, this refers to those individuals referenced in the deposition of Josephine Drew taken on December 10, 2025 as well as the letter sent by Sunny Hills Post Acute dated July 7, 2024 to Felicia Bruce of the Health Facilities Inspection Division executed by Josephine Drew and Stacy Brown. The term "IDENTIFY" and "IDENTITY" as used in this and all subsequent inquiries, means to provide the name, last known residence and employment address and telephone number of the individual(s). For this inquiry and all subsequent inquiries "PLAINTIFF" shall pertain to Kim Tran. The term "FACILITY", as used in this and all subsequent inquiries, shall refer to the skilled nursing facility referred to as Sunny Hills Post Acute wherein PLAINTIFF was a resident. For purposes of these inquiries, YOU and YOUR refers individually and collectively to the defendant to whom this request is addressed and all persons acting or purporting to act on the behalf of said defendant.)

Special Interrogatory No. 59 states:

Please IDENTIFY the RESPONSIBLE PARTY for each "alert female resident" of the FACILITY interviewed by YOU relating to interaction between Kim Tran and/or Saul Tapia. ("RESPONSIBLE PARTY" shall mean "responsible party" as that term is defined in Welfare & Institutions Code § 14110.8 and shall also include the term "resident's representative" as that term is defined in both Title 22 C.C.R. § 72527 and Health & Safety Code § 123105(e).)

Special Interrogatory No. 61 states:

Please IDENTIFY each "alert resident who (was) assigned to the male CNA Saul Tapia" of the FACILITY interviewed by YOU relating to interaction between Kim Tran and/or Saul Tapia.

Special Interrogatory No. 62 states:

Please IDENTIFY the RESPONSIBLE PARTY for each "alert resident who (was) assigned to the male CNA Saul Tapia" of the FACILITY interviewed by YOU relating to interaction between Kim Tran and/or Saul Tapia.

Defendant asserts the following response to each request:

"Objection. This request is vague and ambiguous, unduly burdensome, harassing, and seeks information not reasonably calculated to lead to the discovery of admissible evidence. Romero v. California State Labor

Commissioner (1969) 276 Cal.App.2d 787; Chalco-California Corp. v. Superior Court of Los Angeles County (1963) 59 Cal.2d 883; Columbia Broadcasting System, Inc. v. Superior Court (1968) 263 Cal.App.2d 12. The discovery sought is of no practical benefit to the party seeking the disclosure. Covell v. Superior Court (1984) 159 Cal.App.3d 39. The request as framed is nothing more than a wholesale fishing expedition that would certainly yield information that "...would not -- and should not -- otherwise be discoverable." Calcor Space Facility, Inc. v. Superior Court of Orange County (1997) 53 Cal.App.4th 216; In re: Ford Motor Company (2003) 345 F.Supp.3d 1315. This request seeks personal health information of third parties which is protected from disclosure by the Health Insurance Portability and Accountability Act (45 C.F.R. § 160 et seq.) hereinafter "HIPAA", and by the confidentiality of Medical Information Act (California Civil Code § 56, et seq.) This Request seeks discovery of information within the ambit of Evidence Code Sections 1157, 1157.5, and 1158 as well as 42 U.S.C. Sections 1395i(b) (1)(B) and 1396r(b)(1)(B) and attendant administrative codes and regulations. This Request violates the privacy rights of uninvolved third persons.

Defendant's boilerplate objections are unfounded. Vague and ambiguous objections are considered nuisance objections and exposes the responding party to sanctions. (Standon Co., Inc. v. Superior Court (1990) 225 Cal.App.3d 898, 903.)

HIPPA and Medical Information Act

Civ. Code § 56.10 states that "A provider of health care, health care service plan, or contractor shall not disclose medical information regarding a patient of the provider of health care or an enrollee or subscriber of a health care service plan without first obtaining an authorization." (Civ. Code § 56.10(a).)

However, Plaintiff is not seeking "medical information", instead Plaintiff seeks the name and contact information of witnesses. Indeed, "Medical information" means any individually identifiable information, in electronic or physical form, in possession of or derived from a provider of health care, health care service plan, pharmaceutical company, or contractor regarding a patient's medical history, mental health application information, reproductive or sexual health application information, mental or physical condition, or treatment. "Individually identifiable" means that the medical information includes or contains any element of personal identifying information sufficient

to allow identification of the individual, such as the patient's name, address, electronic mail address, telephone number, or social security number, or other information that, alone or in combination with other publicly available information, reveals the identity of the individual. (Civ. Code § 56.05(j)(1) emphasis added.)

Further, a covered entity may disclose protected health information in the court of any judicial or administrative proceeding in response to an order of court. (45 CFR § 164.512(e)(i).)

Here, the Court does believe Plaintiff's Special Interrogatory seeks health information and thus Defendant's arguments are inapplicable. The Court believes Defendant's concerns are more properly addressed through a protective order.

Privacy and Privilege

The right of privacy protects a person's work history and personnel records. (Alch v. Superior Court (2008) 165 Cal.App.4th 1412, 1427.) However, third party's right of privacy is not absolute and may be abridged when there is a compelling and opposing state interest. (Board of Trustees, Etc. v. Superior Court (1981) 119 Cal.App.3d 516, 525; see also Binder v. Superior Court (1987) 196 Cal.App.3d 893, 900.) One such competitive state interest is facilitating in the ascertainment of truth pertaining to legal proceedings. (Binder, supra, 196 Cal.App.3d at 900.)

Here, the Court does not find a serious invasion of privacy in obtaining witness identification. As noted in Puerto, "This is basic civil discovery." (Puerto v. Superior Court (2008) 158 Cal.App.4th 1242, 1254.) "Nothing could be more ordinary in discovery than finding out the location of identified witnesses so that they may be contacted and additional investigation performed." (Ibid.)

Cal. Evid. Code § 1157

"Neither the proceedings nor the records of organized committees of medical, medical-dental, podiatric, registered dietitian, psychological, marriage and family therapist, licensed clinical social worker,

professional clinical counselor, pharmacist, prehospital emergency medical care person or personnel, or veterinary staffs, or of a peer review body, as defined in Section

805 of the Business and Professions Code, having the responsibility of evaluation and improvement of the quality of care rendered in the hospital, or for that peer review body, or medical or dental review or dental hygienist review or chiropractic review or podiatric review or registered dietitian review or pharmacist review or veterinary review or acupuncturist review or licensed midwife review or prehospital emergency medical care person or personnel review committees of local medical, dental, dental hygienist, podiatric, dietetic, pharmacist, veterinary, acupuncture, chiropractic, or prehospital emergency medical care person or personnel societies, marriage and family therapist, licensed clinical social worker, professional clinical counselor, or psychological review committees of state or local marriage and family therapist, state or local licensed clinical social worker, state or local licensed professional clinical counselor, or state or local psychological associations or societies or licensed midwife associations or societies having the responsibility of evaluation and improvement of the quality of care, shall be subject to discovery."

(Id.)

Defendant contends that "these documents are protected under Evidence Code § 1157 as they were prepared at the behest of the Quality Assurance Committee." Not so. Josephine Drew, who conducted the investigation Mr. Tapia's alleged sexual assault of Mrs. Tran, testified at deposition that the interdisciplinary team met and investigated the allegations that Mr. Tapia sexually assaulted Mrs. Tran. (Plaintiff's Ex. 3, at p. 40:5-8.) Defendant failed to meet its burden to show the requested documents are privileged under Cal. Evid. Code § 1157. Rather, Plaintiff seeks information from an independent investigation.

Plaintiff KIM TRAN's Motion to Compel Defendant Compel Defendant LA MIRADA POST ACUTE LLC's ("Defendant") Further Responses to Special Interrogatories Nos. 58, 59, 61, and 62 is GRANTED. Defendant is ORDERED to provide responses, without objections, by no later than 30 days from the date of the Court's issuance of this Order. This date may be extended by the agreement of the parties.

Sanctions

CCP, section 2031.300(d) provides that for mandatory monetary sanctions “against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories.” (Id.)

Reasonable sanctions are GRANTED in the amount of \$800.00. Defendant LA MIRADA POST ACUTE LLC and its Counsel of record are ORDERED to pay Moving Party and their Counsel of Record sanctions in the amount of \$800.00 by no later than 60 days from the date of the Court’s issuance of this Order. This date may be extended by agreement of the parties.